

Devi Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 28 November 2019 · WRIT - C No. 38976 of 2019 · **Writ disposed; petitioner to appear before EE with objections; speaking final order in four weeks; coercive action stayed seven weeks; liberty to appeal under s.127.**

HEADNOTE

A consumer challenging a Tehsildar recovery citation and tube-well disconnection for want of hearing under the U.P. Electricity Supply Code, 2005 is not granted merits relief in writ. The Court may direct appearance before the Executive Engineer with objections, require a speaking final order within a fixed time, stay coercive action for a limited period, and leave any remaining grievance to an appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Devi Singh challenged a Tehsildar recovery citation dated 25 October 2019 from Sadar, Agra, and sought mandamus to restore his private tube-well electricity connection. He alleged that the electricity department was enforcing recovery without giving him an opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the petitioner and for the electricity department were heard.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

recovery citation — speaking final order then s.127 appeal

HOLDING

Without deciding whether a recovery citation and tube-well disconnection complied with the Supply Code, the Court directed the consumer to appear before the Executive Engineer with objections and evidence, required a speaking final order within four weeks, stayed coercive action for seven weeks or until that disposal, and held that if the consumer is aggrieved by the final order it is open to appeal under Section 127 of the Electricity Act, 2003. Non-appearance revives the citation. ¶ 1

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal After directing the Executive Engineer to pass a speaking final order on the consumer's objection to the recovery citation, the Court left any further challenge to Section 127 and did not quash the citation or order reconnection. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION DATED 25.10.2019 WAS ISSUED WITHOUT HEARING OR IN BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Left to the Executive Engineer's speaking final order, with s.127 thereafter ¶ 1

NOT DECIDED — WHETHER THE PRIVATE TUBE-WELL CONNECTION SHOULD BE RESTORED

¶ 1